

## FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1090 \_\_\_\_\_  
Of the printed Bill  
Page \_\_\_\_\_ Section \_\_\_\_\_ Lines \_\_\_\_\_  
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

**AMEND TITLE TO CONFORM TO AMENDMENTS**

Adopted: \_\_\_\_\_

Amendment submitted by: Stacy Adams

\_\_\_\_\_

\_\_\_\_\_  
Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE  
FOR ENGROSSED

SENATE BILL NO. 1090

By: Adams of the House

and

Thompson of the Senate

FLOOR SUBSTITUTE

An Act relating to contracts; creating the Oklahoma  
Homeowner Repair Contract Protection Act; defining  
home solicitation contract; allowing a five-day  
voidable contract period for homeowners; providing  
for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified  
in the Oklahoma Statutes as Section 1100 of Title 15, unless there  
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma  
Homeowner Repair Contract Protection Act".

SECTION 2. NEW LAW A new section of law to be codified  
in the Oklahoma Statutes as Section 1101 of Title 15, unless there  
is created a duplication in numbering, reads as follows:

1        "Home solicitation contract" means entering into a home repair  
2 contract or services in which the home repair contractor or a person  
3 acting for him or her engages in a personal solicitation of the sale  
4 at a residence of the buyer, and the buyer's agreement is given to  
5 the contractor or a person acting for him or her. It does not  
6 include a sale made pursuant to a preexisting revolving contract, or  
7 a contract made pursuant to prior negotiations between the parties  
8 at a business establishment at a fixed location where goods or  
9 services are offered or exhibited for sale. Nothing in this act  
10 shall prohibit advertising, responding to homeowner-initiated  
11 contact, or performing services when contacted directly by the  
12 property owner.

13        SECTION 3.        NEW LAW        A new section of law to be codified  
14 in the Oklahoma Statutes as Section 1102 of Title 15, unless there  
15 is created a duplication in numbering, reads as follows:

16        1. In addition to any right otherwise to revoke an offer, the  
17 homeowner has the right to cancel a home solicitation contract until  
18 midnight of the fifth calendar day after the day on which the  
19 homeowner signs an agreement for home repairs;

20        2. Cancellation occurs when the homeowner gives written notice  
21 of cancellation via certified mail to the contractor at the address  
22 stated in the agreement or offer to purchase;

23        3. Notice of cancellation is given when it is deposited in a  
24 mailbox properly addressed and postage prepaid; and

1        4. Notice of cancellation given by the homeowner need not take  
2 a particular form and is sufficient if it indicates by any form of  
3 written expression the intention of the homeowner not to be bound by  
4 the home solicitation sale.

5        SECTION 4. This act shall become effective November 1, 2026.

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